

necessary on today's calendar to provide the Court with information about who lives in the home with the minor.

GUARDIANSHIP OF CHEYANNE & ISAIAH WOODRUFF

Case Number: CVPG21-0031108

This matter is on calendar for further proceedings on a Petition for Termination of the Guardianship filed by the mother Nicole Cain. The Petition has not been properly noticed. The Court previously dispensed with notice to the deceased maternal grandparents, deceased paternal grandfather, and deceased paternal grandmother/Guardian. At the prior hearing on January 27, 2025, the Court noted that the Petitioner Nicole Cain was required to serve the father, minor, and the minor's siblings. The matter was continued to today and Ms. Cain was warned that a failure to properly effect service could result in the denial of her Petition. Despite the warning, no new documents have been filed by Ms. Cain and no new Notice of Hearing or proofs of service have been filed. It appears that Ms. Cain has taken no action since the prior hearing date. The Petition for Termination is **DENIED**.

This matter is also on calendar for hearing on a Petition for Appointment of Successor Guardian of the Person of minor, Cheyanne and Isaiah Woodruff. The Petition was filed by the minor's paternal uncle, Cody Murray. Letters of Temporary Guardianship have not been issued.

The minors have consented to the appointment of the proposed Guardian. The Court dispenses with notice to the deceased maternal grandparents and deceased paternal grandparents. There is no proof of service of the Notice of Hearing for the father, mother or siblings. Insufficient information has been provided to permit the Court to dispense with notice to these parties. The parents must be personally served in order to move forward on the Petition. Prob. Code § 1511(b). Siblings can be served by mail. Prob. Code § 1511(c). For siblings under 12 years of age, service can be on the parent or guardian with whom the sibling resides. Prob. Code § 1460.1. The Indian Child Inquiry Attachment shows that the minors are Indian Children. Petitioner will need to file a Notice of Child Custody Proceedings for Indian Child (Judicial Council Form ICWA-030) so that the Court can start the ICWA notification process. The Court also notes that the Confidential Guardianship Screening Form omitted Attachment 5. An Amended Screening Form is required. The Court has reviewed the Court Investigator's report, filed February 26, 2025, which recommends granting the Petition.

This matter is continued to **Monday, April 21, 2025, at 8:30 a.m. in Department 42** for further proceedings on the Petition. Petitioner is ordered to file and serve a new Notice of Hearing, along with a copy of the Petition, for the continued hearing date on the parties identified above. In the alternative, if Petitioner cannot serve the parties identified above, the Court will require a declaration explaining why they cannot be served and the efforts of Petitioner to locate and serve the parties identified, in order to permit the Court to dispense with notice to the parties. Petitioner shall also file the Notice of Child Custody Proceedings (Judicial Council Form ICWA-030) promptly to ensure timely noted and shall file an Amended Guardianship Screening Form. **Warning: Failure to properly effect service or provide adequate basis to dispense with service as to the necessary parties will result in denial of the Petition. Notice is preserved. No appearance is necessary on today's calendar.**